

**PLACER COUNTY SUPERIOR COURT**  
**THURSDAY, CIVIL LAW AND MOTION**  
**DEPARTMENT 3**  
**THE HONORABLE MICHAEL W. JONES**  
**TENTATIVE RULINGS FOR AUGUST 6, 2026, AT 8:30 A.M.**

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case of a tenancy at will, it shall first be terminated by notice, as prescribed in the Civil Code.

(Code Civ. Proc., § 1161, subd. (1).)

Here, when taking the allegations in the complaint as true, plaintiff alleges facts sufficient to state a cause of action for unlawful detainer based on the expiration of the lease term and the notice of non-renewal/notice to vacate after the expiration of the lease term. Nor is the demurrer uncertain. As such, the demurrer is overruled.

Defendant shall file and serve an answer or other responsive pleading 5 calendar days after service of the order after hearing. (Cal. Rules of Court, rule 3.1320, subd. (g).)

**4. S-CV-0053910 SPENCER, JEFFREY v. HYUNDAI MOTOR AMERICA**

Defendant's Motion to Compel Binding Arbitration

Preliminary Matters

Both parties' requests for judicial notice are granted.

Plaintiffs' objections to Ali Ameripour's declaration are sustained.

Ruling on Motion

Defendant moves to compel arbitration of plaintiff's complaint.

A request to compel arbitration under the FAA may be brought in state court. (*Southland Corp. v. Keating* (1984) 465 U.S. 1, 16; *Main v. Merrill Lynch, Pierce, Fenner & Smith, Inc.* (1977) 67 Cal.App.3d 19, 24, disapproved of on other grounds in *Rosenthal v. Great Western Financial Securities Corp.* (1996) 14 Cal.4th 394.) The arbitration statutes evidence a strong public policy in favor of arbitration that is frequently approved and enforced by the courts. (*Madden v. Kaiser Foundation Hospitals* (1976) 17 Cal.3d 699, 706; *Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1405.) The FAA governs a contractual arbitration where there is a written contract involving interstate or foreign commerce or maritime transactions. (9 U.S.C. §§ 1, 2.) Where the parties incorporate the FAA into the agreement, the FAA governs a party's request to compel arbitration. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.) A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries

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this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) “[A] party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.” (*AT&T Technologies v. Communications Workers* (1986) 475 U.S. 643, 648; see *Cronus Investments, Inc. v. Concierge Svcs.* (2005) 35 Cal.4th 376, 384–85.)

Defendant contends there are two distinct arbitration provisions between the parties to compel arbitration: (1) the Owner’s Handbook and (2) the Genesis Connected Services Agreement (“GCSA”).

First, defendant does not meet its initial burden that an agreement to arbitrate exists with respect to the Owner’s Handbook as none was attached and there is insufficient evidence one exists.

Even assuming arguendo defendant properly presented the Owner’s Handbook that contains an arbitration agreement, there is insufficient evidence the Owner’s Handbook accompanied the vehicle or that plaintiff knew of the Owner’s Handbook. Moreover, defendant’s verified discovery responses indicate it did not “manufacture the subject vehicle, did not provide a warranty on the subject vehicle, and did not sell the subject vehicle to Plaintiffs.” So, even if one existed and accompanied the vehicle, it is unclear whether defendant would have the right to rely on the provisions therein. Additionally, the recent California Supreme Court case found that a manufacturer’s warranties that accompany a vehicle at the time of sale does not permit the manufacturer as a third party to enforce the arbitration provision. (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1126.)

Defendant thereafter provides evidence that plaintiff enrolled their vehicle in GCSA—which is a smart-car system—through the Dealer-Assisted Enrollment process as another basis to compel arbitration. (Rao Decl., ¶¶ 4–6.) Defendant establishes that for individuals to enroll with GCSA, they must accept the terms and conditions by clicking a checkbox, and that the terms and conditions include an arbitration provision. (*Ibid.*) However, defendant does not provide any authority that would support an order compelling arbitration when the arbitration provision comes out of a smart-car system agreement when plaintiffs’ claims are for defects to the vehicle itself and not the smart-car system.

Even assuming arguendo that defendant met its initial burden as to the arbitration agreement contained in the Owner’s Handbook or the GCSA arbitration agreement applied to plaintiffs’ claims, plaintiffs thereafter meet their burden to establish

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defendant waived its right to arbitration. To establish the defense of waiver, plaintiff bears the burden to prove by clear and convincing evidence that defendant knew of the arbitration right and intentionally relinquished or abandoned it. (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) “[I]ntentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable factfinder to conclude that the party had abandoned it.” (*Ibid.*) Plaintiff must show it is highly probable the facts that support waiver are true. (*Ibid.*)

Here, defendant intentionally abandoned its right to arbitration because it knew about its right to arbitration as it reserved two separate hearings for a motion to compel arbitration on August 21, 2025, and November 20, 2025—that was ultimately continued to March 5, 2026—yet the hearings were dropped because defendant did not file any moving papers with the court. Moreover, defendant acted inconsistent with its right to enforce contractual arbitration because it did not properly move for arbitration until 14 months after it filed its answer and during the 14-month period between answering and moving to compel arbitration it responded to discovery, propounded interrogatories, issued deposition notices, sent inspection demands, and engaged in law and motion proceedings.

Accordingly, defendant’s motion to compel arbitration and stay action is denied.

**5. S-CV-0054211 BRYANT, KANDIE v. MAIDU DENTAL**

Defendant Luminita Markham’s Motion to Compel Response to Request for Statement of Damages

Defendant moves to compel a response to her request for statement of damages served on plaintiff via email on January 16, 2026. Specifically, defendant requests plaintiff to provide an itemized description of the following damages:

1. Hospital expenses and bills, if any;
2. Doctor, nurse, therapist or other medical practitioner expenses and bills, if any;
3. Wage or income loss, if any;
4. Diminution of earning capacity, if any;
5. General damages, including, but not limited to, pain and suffering, humiliation, embarrassment, and inconvenience.

Code of Civil Procedure section 425.11, subdivision (b) provides